

Kumar Sambhav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 May 2022 · Writ-C No. 5838 of 2022 · **Writ disposed; 6.8 objection with stay of coercive action**

HEADNOTE

A writ seeking quashing of a distribution-licensee demand notice and a mandamus to decide a pending application was disposed of without any opinion on merits. The consumer was given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing within the following four weeks, with a stay of coercive action for eight weeks or until that disposal, whichever is earlier.

FACTUAL SUMMARY

Kumar Sambhav, a consumer holding Account No. 5213633973, challenged a demand notice dated 26 June 2021 (Notice No. 1603) issued by the power distribution corporation and sought a mandamus to decide his application dated 16 July 2021 by a speaking order. Counsel for the distribution corporation stated that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

clause-6.8-objection-alternate-remedy

HOLDING

Without expressing any opinion on merits, the writ challenging a demand notice is disposed of with liberty to the consumer to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the distribution licensee shall decide it in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action on the demand shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against a demand notice disposed of by relegating the consumer to the Para 6.8 objection, without any merits ruling. ¶ 1

para-6.8-objection-alternate-remedy Liberty granted to file a Para 6.8 objection within four weeks, with a time-bound hearing-and-decision direction and interim protection against coercive recovery. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF DEMAND NOTICE DATED 26 JUNE 2021 (NOTICE NO. 1603)

Court expressly declined to opine on merits of the demand or of the pending application dated 16 July 2021. ¶ 1